IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-208
CA (CAA) - 27/230-232/ND/2020
COMP.APPL /49/2020

IN THE MATTER OF:
Focus Buildwell Pvt Ltd and MSG Finance India Pvt Ltd ....Applicant

SECTION
U/s 230-232

Order delivered on 11.09.2020

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI K.K. VOHRA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

This is the application filed under Section 230 of IBC where transfer company no. 2 is a non-banking finance company. In the last order dated 19.08.2020 of this bench, the petitioner was directed to issue notice to various regulatories like OL, RD, IT & RBI by all means including e mail and speed post. The petitioner has submitted some documents which are not legible. A careful perusal of the previous papers reveals that the petitioner has sent letter to RBI in response to some queries on 23.10.2019 which is at page 14 of the affidavit submitted by the petitioner on 26.08.2020. Letter refers to some queries raised by RBI on 09.10.19. The nature of queries and final view of RBI is not known. The petitioner is advised to send notice by mail within a day or so to RBI as advised earlier vide order dated 08.07.20 as well as order dt 19.08.20. Petitioner is also advised to submit a legible copy of cover letter of speed post, receipt and tracking report of the speed post.

Ms. Shankari, who is representing RD & OL has raised some objections. Keeping in view the objections by RD & OL, non-sending of notice by mail as advised by this bench, it will be in the interest of justice that the petitioner responds to the queries by RD and seek NOC from RBI as sought by it vide

letter dt 23.10.19. RD also requires reasonable time to close the case and give their final views on objection.

Ms. Shankari submitted that she has already filed the reply/report yesterday and she undertakes to serve the copy of the RD's objections along with annexures upon the Ld. Counsel for the petitioner during the course of the day and thereafter, petitioner is directed to file reply to the same, within 10 days. Ld. Counsel for the RD is directed to file their reply about objection by 25.09.2020.

Ms. Zehra Khan seeks 3 working days' time to file report. She is directed to file the same after serving an advance copy upon the Ld. Counsel for the respondent.

List the case on **30.09.2020**.

sd/-

(K.K. VOHRA)
MEMBER (T)

sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)